

OKLAHOMA STATUTES
TITLE 3A. AMUSEMENTS AND SPORTS

§3A-200. Short title.....	5
§3A-200.1. Definitions.....	6
§3A-201. Oklahoma Horse Racing Commission - Creation - Membership - Appointment - Term - Removal - Vacancies.....	8
§3A-202. Conflicts of interest.....	9
§3A-203. Meetings - Officers - Quorum - Legal proceedings or actions - Compensation.....	9
§3A-203.1. Commission member prohibited from performing certain activities.....	10
§3A-203.2. Advisory councils and task forces.....	11
§3A-203.3. Executive director - Appointment - Qualifications - Duties and compensation - Equal opportunity plan - Law enforcement division - Surety bond.....	11
§3A-203.4. Stewards - Chief steward and assistant stewards - Other personnel - Compensation - Duties.....	13
§3A-203.5. Stewards - Examinations - Qualifications - Licenses.....	14
§3A-203.6. Subpoenas - Oaths and affirmations - False testimony.....	15
§3A-203.7. Purpose and intent of act - Rules and regulations.....	15
§3A-203.8. Non-pari-mutuel tracks - Time for payment of claims.....	16
§3A-204. Powers and duties of Commission.....	16
§3A-204.1. Repealed by Laws 1986, c. 223, § 59, operative July 1, 1986.....	20
§3A-204.1A. Repealed by Laws 2017, c. 116, § 8, eff. July 1, 2017.....	20
§3A-204.1B. Equine Drug Testing Revolving Fund.....	20
§3A-204.1C. Oklahoma Horse Racing Commission Operational Expenses Revolving Fund.....	20
§3A-204.1D. Oklahoma Horse Racing Commission - Budget.....	21
§3A-204.2. Occupation licenses for certain racetrack personnel - Application - Fees - Grounds for refusal to issue - Suspension or revocation - Disposition of fees.....	22
§3A-204.3. Suspension or revocation of occupation license at race meeting - Procedure.....	24
§3A-205. License required.....	24
§3A-205.1. Organization license - Applications - Silent or undisclosed interest.....	24
§3A-205.2. Organization license - Fees - Issuance - Racing days allocation - Bond - Citizenship and residency - Revocation of license - Disposition of fees.....	25
§3A-205.2a. Ownership interest in organization license.....	29
§3A-205.3. Persons ineligible for grant of organization license.....	29
§3A-205.4. Minimum standard for organization licensees - Penalty.....	30
§3A-205.5. Fire safety standards in grandstand facilities - Inspections.....	30
§3A-205.6. Pari-mutuel system of wagering authorized - Distribution of funds retained from money wagered - Revenue bond financing of racetrack or facility prohibited.....	30
§3A-205.6a. Offtrack wagering plans - Conditions - Notification - Licensing - Breakage and unclaimed ticket proceeds.....	34
§3A-205.7. Wagering on out-of-state races.....	36
§3A-205.7a. Televised races.....	38
§3A-205.8. National Breeders' Cup - Pick seven wagers - Apportionment of wagered funds.....	39
§3A-206. Repealed by Laws 1983, c. 11, § 38.....	39
§3A-207. Tax imposed - Distribution of proceeds.....	39
§3A-208. Breakage - Distribution of proceeds.....	40
§3A-208.1. Unclaimed winning tickets - Claims - Proceeds.....	40
§3A-208.2. Race meetings conducted by fair associations - Proportions of wagers retained - Licenses.....	41
§3A-208.3. Oklahoma Breeding Development Fund Special Account.....	43
§3A-208.3a. Oklahoma Breeding Development Administration Revolving Fund.....	46
§3A-208.4. Conducting race or race meeting without license - Permitting minors to participate in certain activities - Penalties.....	46
§3A-208.5. Repealed by Laws 1993, c. 85, § 2, eff. Sept. 1, 1993.....	47
§3A-208.6. True name of horse to be used - Violations.....	47

§3A-208.7. Use of certain devices for stimulating or depressing horse prohibited - Violations - Penalties.....	47
§3A-208.8. Corrupt acts and practices - Penalties.....	48
§3A-208.9. Compensation for wagering prohibited - Penalties.....	49
§3A-208.10. Fraud regarding prior racing record, pedigree, identity or ownership of registered animal.....	49
§3A-208.11. Administration of drugs or medications - Determination by rule - Penalties.....	50
§3A-208.12. Gaming areas not subject to certain smoking prohibitions - Requirements.....	51
§3A-208.13. Horsemen's Bookkeeper - Records.....	51
§3A-209. County option.....	52
§3A-210. Repealed by Laws 1983, c. 11, § 38.....	53
§3A-211. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-212. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-213. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-214. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-215. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-216. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-217. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-218. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-219. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	53
§3A-220. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-221. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-222. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-223. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-224. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-225. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-226. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-227. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-228. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-229. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-230. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	54
§3A-231. Repealed by Laws 2004, c. 316, § 26, State Question No. 712, Legislative Referendum No. 335, adopted at election held on Nov. 2, 2004.....	55

§3A-240. Enactment of compact - Provisions.	55
§3A-251. Local rodeo committees - Acceptance of local entries.....	60
§3A-261. Short title.....	60
§3A-262. Authorized gaming licenses.....	60
§3A-262.1. Occupation gaming licenses – Independent testing laboratory license.....	63
§3A-263. Distributions and payments by licensees.....	65
§3A-264. Race meetings - Number required.....	73
§3A-265. Transfer of purse money - Agreements - Rescission.....	74
§3A-266. Out-of-state full card simulcast races.....	75
§3A-267. Official representatives of Thoroughbred and non-Thoroughbred horses - Negotiations and covenants - Financial accounting.....	76
§3A-268. Certification of electronic games - Review by Commission - Modification of electronic games.....	76
§3A-269. Definitions.....	79
§3A-270. Player terminals - Recording, monitoring and regulating play.....	80
§3A-271. Minimum standards for games.....	81
§3A-272. Audit of game software.....	82
§3A-273. Bonanza-style games.....	82
§3A-274. Instant bingo games.....	83
§3A-275. Standards for player terminals.....	83
§3A-276. Electronic accounting systems.....	85
§3A-277. Standards for cashless transaction systems.....	85
§3A-278. Electronic game components - Certification by manufacturer.....	87
§3A-279. Disputes - Collection of data.....	88
§3A-280. Offer of model tribal gaming contract.....	88
§3A-280.1. Non-house-banked table games supplement.....	90
§3A-281. Model Tribal Gaming Compact.....	92
§3A-282. Organization Gaming License Fees - Oklahoma Horse Racing Commission Gaming Regulation Revolving Fund - Occupation Gaming License Fees.....	120
§3A-301. Amateur sports organizations seeking national affiliation or membership - Exemptions - Eligibility standards - Nondiscrimination requirement - Penalties.....	121
§3A-401. Short title - Purpose - Findings.....	123
§3A-402. Definitions.....	124
§3A-403. Licensing authority - Administration and enforcement of act - Powers and duties of Commission.....	127
§3A-404. Licenses - When issuance prohibited - Transfer, sale, lease or assignment prohibited - Initial and renewal fees.....	129
§3A-405. Limited charity game activities - Exemptions.....	129
§3A-406. Refusal to issue, denial of renewal, suspension, or revocation of distributor or manufacturer license.....	131
§3A-407. Refusal to issue, denial of renewal, suspension, or revocation of any license - Penalty schedule.....	132
§3A-408. Organization license - Application.....	132
§3A-408.1. Employee or manager license.....	133
§3A-409. Distributor license - Application.....	134
§3A-410. Manufacturer license - Application.....	134
§3A-411. Notice of intention to apply for license - Notice of application to local authorities.....	135
§3A-412. Protest.....	136
§3A-413. Petition to revoke license.....	136
§3A-414. Licensee records - Reports.....	137
§3A-415. Purchase, sale or disposal of supplies.....	137
§3A-416. Reporting of damaged and winning bingo faces, cards and game sets.....	138
§3A-417. Alcoholic beverages and low-point beer prohibition.....	138

§3A-418. Prohibited acts.....	138
§3A-419. Limitation on prizes.	139
§3A-420. Sales tax permit required.	139
§3A-421. Taxes levied.	140
§3A-422. Collection and remission of taxes.....	140
§3A-423. Disposition of revenues.	142
§3A-424. Penalties.	142
§3A-425. Cease and desist orders - Injunctions - Restraining orders - Administrative fines.	143
§3A-426. Bingo faces, game sets, or breakopen ticket cards declared contraband - Confiscation, forfeiture, and destruction.	143
§3A-427. Unexpired licenses issued by district court clerk - Inventory of game equipment in possession of applicant prior to December 31, 1992 - Rules.....	145
§3A-501. Short title.....	146
§3A-502. Certain acts and games prohibited - Definitions.	146
§3A-503. Prizes - Posting of rules and costs.	147
§3A-504. Offenses.....	147
§3A-505. Penalties.	148
§3A-601. Short title.....	148
§3A-602. Definitions.	149
§3A-603. Rules - Power and duty of Commission.	153
§3A-604. Repealed by Laws 1999, c. 210, § 20, emerg. eff. May 25, 1999.....	153
§3A-604.1. Oklahoma State Athletic Commission – Members - Terms.....	153
§3A-604.2. Purpose and powers of commission – Validity of prior licenses, permits, certificates, or registrations - Transfers.	154
§3A-604.3. Withholding of purse.....	156
§3A-605. Administrator - Personnel – Termination of support from State Department of Health and transfer of personnel.	156
§3A-606. Sanctioning permits - Exemptions.....	157
§3A-607. Application for sanctioning permit or license - Notice of sanction.	158
§3A-608. Repealed by Laws 1995, c. 202, § 12, emerg. eff. May 19, 1995.....	160
§3A-609. Sanctioning permit required - Prohibition by local ordinance or resolution.....	160
§3A-610. Withholding, suspension or revocation of license and sanctioning permit - Censure or reprimand - Fees.	160
§3A-611. Considerations before issuance of license or sanctioning permit.....	161
§3A-612. Security.....	161
§3A-613. Subpoena of witnesses, production of records - Audits - Suspension for just cause.	162
§3A-614. Notice of violation - Hearing - Orders - Actions.....	162
§3A-615. Penalties - Administrative fines - Injunctions.	163
§3A-616. Oklahoma State Athletic Commission Revolving Fund.....	164
§3A-617. Assessment - Total gross receipts, proceeds and telecasts included – Complimentary tickets - Payment - Gross receipts report - Records.....	165
§3A-618. Repealed by Laws 1995, c. 202, § 12, emerg. eff. May 19, 1995.....	169
§3A-619. Annual report.	169
§3A-620. Repealed by Laws 1995, c. 202, § 12, emerg. eff. May 19, 1995.....	169
§3A-621. Repealed by Laws 2005, c. 462, § 4, eff. Nov. 1, 2005.....	169
§3A-622. Telecast promoters - License - Names and addresses of facilities - Unauthorized telecasts - Report - Assessment payments - Penalties.....	169
§3A-623. Liability for damages – Ring official physicians.....	171
§3A-624. Licensure – Certified copy of test results.	171
§3A-701. Short title.....	171
§3A-702. Intent of act.	172
§3A-703. Definitions.	172
§3A-704. Oklahoma Lottery Commission – Creation – Office – Venue.	175

§3A-705. Oklahoma Lottery Commission – Board of Trustees.	175
§3A-706. Repealed by Laws 2023, c. 332, § 6, eff. Nov. 1, 2023.....	176
§3A-707. Duties of board of trustees.....	176
§3A-708. Executive director.....	176
§3A-709. Powers of Commission.	176
§3A-710. Rules – Video lottery machines prohibited.	178
§3A-711. Powers and duties of executive director.....	179
§3A-712. Personnel – Conflict of interest – Background investigation – Bond.	180
§3A-713. Disposition of proceeds - Oklahoma Education Lottery Trust Fund - Appropriation of proceeds - Replenishment of fund - Oklahoma Education Lottery Revolving Fund - Appropriations made available on a monthly basis.	181
§3A-713.1. Repealed by Laws 2019, c. 455, § 2, eff. July 1, 2019.....	188
§3A-714. Encouragement of minority business participation.	188
§3A-715. Submission of bids, proposals, or offers - Investigation of vendors – Disclosures – Restrictions on entry into contracts – Gifts, loans, etc.	188
§3A-716. Performance bond, letter of credit or securities – Competitive bidding.	190
§3A-717. Statewide network of lottery retailers – Compensation – Criteria for qualification.....	191
§3A-718. Transfer or assignment of contract – Restriction on sale of tickets and shares.....	194
§3A-719. Repealed by Laws 2024, c. 443, § 6, emerg. eff. June 14, 2024.	194
§3A-720. Cancellation, suspension, revocation, denial, rejection of renewal, or termination of contract – Temporary suspension.....	194
§3A-721. Personal liability for proceeds – Deposit requirements – Insolvency.	195
§3A-722. Computation of rental payments for retailer business premises – Percentage of retail sales...	196
§3A-723. Prices of tickets or shares – Restrictions on sales.	196
§3A-723.1. Authorized purchase of lottery tickets by officers and employees.....	197
§3A-724. Prizes - Verification of validity of tickets or shares - Unclaimed prize monies.....	197
§3A-724.1. Prize withholding – Delinquent debt to Department of Human Services.....	199
§3A-724.2. Prize withholding - Delinquent debt to Tax Commission.	200
§3A-724.3. Withholding delinquent debt – Payment – Promulgation of rules.	201
§3A-724.4. Priority of delinquent debt withholding.....	202
§3A-724.5. Web application for lottery-sponsored and second-chance promotions.	202
§3A-725. Confidentiality and disclosure – Criminal background investigations – Inspection of facilities – Cooperation with law enforcement agencies.....	202
§3A-726. Sale of ticket or share to person under 18 – Penalty.	204
§3A-727. Fraudulent alteration of ticket – Coercion or tampering with equipment to influence winning of prize – Penalty.....	204
§3A-728. False statement in application for license or proposal – Penalty.....	204
§3A-729. Intelligence – Sharing agreements with federal government and other agencies – Disclosure.....	205
§3A-730. Appeals.	205
§3A-731. Monies to be used for expenses and prizes – Purchase, lease, or lease-purchase of goods or services.	206
§3A-732. Repealed by Laws 2024, c. 443, § 7, emerg. eff. June 14, 2024.	206
§3A-733. Reports – Records – Audits – Submission of annual operating budget.....	206
§3A-734. Oklahoma Lottery Commission Legislative Oversight Committee – Report of level of participation of minority businesses.....	207
§3A-735. Operation of other forms of Class III gaming.....	208

§3A-200. Short title.

Sections 1 through 35 of this act and Section 209 of Title 3A of the Oklahoma Statutes shall be known and may be cited as the "Oklahoma Horse Racing Act".

Added by Laws 1983, c. 11, § 1, emerg. eff. March 22, 1983.

§3A-200.1. Definitions.

A. As used in the Oklahoma Horse Racing Act:

1. "Commission" means the Oklahoma Horse Racing Commission;
2. "Enclosure" means all buildings, structures and grounds utilized for the conduct of a race meeting and/or gaming at the race track and any additional areas designated by the Oklahoma Horse Racing Commission;
3. "Family" means husband, wife, and any dependent children;
4. "Financial interest" means an interest that could result in directly or indirectly receiving a pecuniary gain or sustaining a pecuniary loss as a result of ownership or interest in a business entity, or as a result of salary, gratuity, or other compensation or remuneration from any person;
5. "Horse racing" means any type of horse racing, including, but not limited to, Arabian, Appaloosa, Paint, Pinto, Quarter Horse, and Thoroughbred horse racing.
 - a. "Arabian horse racing" means the form of horse racing in which each participating horse is an Arabian horse registered with the Arabian Horse Club Registry of America and approved by the Arabian Horse Racing Association of America or any successor organization, mounted by a jockey, and engaged in races on the flat over a distance of not less than one-quarter (1/4) mile or more than four (4) miles.
 - b. "Appaloosa horse racing" means the form of horse racing in which each participating horse is an Appaloosa horse registered with the Appaloosa Horse Club or any successor organization and mounted by a jockey.
 - c. "Quarter Horse racing" means the form of horse racing where each participating horse is a Quarter Horse registered with the American Quarter Horse Association or any successor organization, mounted by a jockey, and engaged in a race on the flat.
 - d. "Paint horse racing" means the form of horse racing in which each participating horse is a Paint horse registered with the American Paint Horse Association or any successor organization and mounted by a jockey.
 - e. "Pinto horse racing" means the form of horse racing in which each participating horse is a Pinto horse registered with the Pinto Horse Association of

America, Inc. or any successor organization and mounted by a jockey.

- f. "Thoroughbred horse racing" means the form of horse racing in which each participating horse is a Thoroughbred horse registered with the Jockey Club or any successor organization, mounted by a jockey, and engaged in races on the flat.

"Horse racing" shall not mean the racing of a cloned horse or offspring of a cloned horse regardless of whether any breed association has registered the horse;

6. "Minor" means any individual under eighteen (18) years of age;

7. "Minus pool" means a pari-mutuel pool in which, after deducting the take-out, not enough money remains in the pool to pay the legally prescribed minimum return to those placing winning wagers, and in which the organization licensee would be required to pay the remaining amount due;

8. "Occupation licensee" means any person who has obtained an occupation license;

9. "Organization licensee" means any person receiving an organization license;

10. "Pari-mutuel system of wagering" means a form of wagering on the outcome of horse races in which those who wager purchase wagers of various denominations on a horse or horses and all wagers for each race are pooled and held by the organization licensee for distribution. The pari-mutuel system of wagering uses an electric totalizator or similar equipment which automatically registers the wagers made on each horse;

11. "Pari-mutuel pool" means the total money wagered by individuals on any horse or horses in a particular horse race to win, place, or show and held by the organization licensee pursuant to the pari-mutuel system of wagering. There is a separate pari-mutuel pool for win, for place, for show, and for each multiple combination of betting approved by the Oklahoma Horse Racing Commission;

12. "Person" means any individual, partnership, corporation, or other association or entity; and

13. "Race meeting" means the entire period of time not to exceed twenty (20) calendar days separating any race days for which an organization license has been granted to a person by the Commission to hold horse races at which the pari-mutuel system of wagering is conducted, to hold non-pari-mutuel horse races or to conduct accredited work or training races.

B. The Commission may define by rule or regulation any term which is not defined in the Oklahoma Horse Racing Act.

Added by Laws 1983, c. 11, § 2, emerg. eff. March 22, 1983. Amended by Laws 1985, c. 196, § 1, emerg. eff. June 26, 1985; Laws 1986, c.

223, § 10, operative July 1, 1986; Laws 1987, c. 208, § 69, operative July 1, 1987; Laws 1987, c. 236, § 88, emerg. eff. July 20, 1987; Laws 1988, c. 210, § 5, operative July 1, 1988; Laws 1991, c. 269, § 6, eff. July 1, 1991; Laws 1992, c. 364, § 14, eff. July 1, 1992; Laws 2004, c. 517, § 1, emerg. eff. June 9, 2004; Laws 2006, c. 274, § 1, emerg. eff. June 7, 2006; Laws 2007, c. 1, § 1, emerg. eff. Feb. 22, 2007; Laws 2009, c. 49, § 1, eff. Nov. 1, 2009. NOTE: Laws 2006, c. 177, § 1 repealed by Laws 2007, c. 1, § 2, emerg. eff. Feb. 22, 2007.

§3A-201. Oklahoma Horse Racing Commission - Creation - Membership - Appointment - Term - Removal - Vacancies.

A. There is hereby created the Oklahoma Horse Racing Commission, which shall consist of the following nine (9) members:

1. One member who shall be from the First Congressional District, one member who shall be from the Second Congressional District, one member who shall be from the Third Congressional District, one member who shall be from the Fourth Congressional District, and one member who shall be from the Fifth Congressional District appointed by the Governor and confirmed by the Senate;

2. One at large member who shall be experienced in the horse racing industry and from the state and one at large member who may be experienced in the horse racing industry and who shall be from the state appointed by the Speaker of the Oklahoma House of Representatives; and

3. One at large member who shall be experienced in the horse racing industry and from the state and one at large member who shall be experienced in the horse racing industry and from the state appointed by the President Pro Tempore of the Oklahoma State Senate.

In the event of a vacancy that qualifies for an appointment under paragraph 2 or 3 of this subsection, the Speaker of the House and the President Pro Tempore shall have alternating appointments; provided, however, the Speaker of the House shall make the initial appointment.

When congressional districts are redrawn, each member appointed and confirmed by the Senate, if applicable, prior to July 1 of the year in which such modification becomes effective shall complete the current term of office, and appointments made and confirmed by the Senate, if applicable, after July 1 of the year in which such modification becomes effective shall be based on the redrawn districts. Appointments made after July 1 of the year in which such modification becomes effective shall be from any redrawn districts which are not represented by a board member until such time as each of the modified congressional districts is represented by a board member.

B. To be eligible for appointment to the Commission, a person shall:

1. Be a citizen of the United States;
2. Have been a resident of this state for five (5) years immediately preceding the appointment; and
3. Not have been convicted of a felony pursuant to the laws of this state, the laws of any other state, or the laws of the United States as established by a national criminal history record check as defined by Section 150.9 of Title 74 of the Oklahoma Statutes.

C. The term of office of a member of the Commission shall be for six (6) years and until a successor is appointed and qualified.

D. Each appointing authority may remove any member he or she appointed to the Commission for incompetence, neglect of duty, or malfeasance in office upon first giving the member a copy of the charges and an opportunity to be heard. A vacancy on the Commission shall be filled for the unexpired term by appointment made by the appropriate appointing authority.

Added by State Question No. 553, Initiative Petition No. 315, adopted at election held Sept. 21, 1982. Amended by Laws 1983, c. 11, § 3, emerg. eff. March 22, 1983; Laws 1992, c. 364, § 3, emerg. eff. June 4, 1992; Laws 2002, c. 375, § 2, eff. Nov. 5, 2002; Laws 2003, c. 204, § 1, eff. Nov. 1, 2003; Laws 2005, c. 217, § 1, emerg. eff. May 24, 2005; Laws 2006, c. 177, § 2, emerg. eff. May 23, 2006; Laws 2024, c. 362, § 1, eff. Nov. 1, 2024.

§3A-202. Conflicts of interest.

No individual shall be a member of the Commission if the individual or a member of the family of the individual has a financial interest in any organization licensee and no individual other than an individual required by the provisions of Section 201 of this title to be experienced in the horse industry shall be a member of the Commission if the individual or a member of the family of the individual has a financial interest in any business entity which does business with any organization licensee or owns an interest in any racehorse which participates in any race meeting supervised by the Commission.

Added by State Question No. 553, Initiative Petition No. 315, adopted at election held Sept. 21, 1982. Amended by Laws 1983, c. 11, § 4, emerg. eff. March 22, 1983; Laws 2005, c. 217, § 2, emerg. eff. May 24, 2005.

§3A-203. Meetings - Officers - Quorum - Legal proceedings or actions - Compensation.

A. The Commission shall meet at such times and places within this state as the Commission determines. The members of the Commission shall annually elect a chairman, vice-chairman, and secretary from the membership of the Commission. No member of the Commission shall serve more than two (2) successive terms as chairman. A majority of the members shall constitute a quorum.